Implementing Speech Restrictions on University Campuses

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Abstract. This paper asks how universities should regulate speech given that both restricting and permitting it impose costs. It reviews legal opinion, academic philosophy, medical education research, and institutional reporting. Restrictions carry an educational cost: the United States Court of Appeals for the Eleventh Circuit, in Speech First, Inc. v. Cartwright, found that the chilling of speech harms a student separately from any enforcement action, meaning a policy can do damage without ever being applied. Permitting speech carries a cost as well, since research in Academic Medicine documents students withdrawing from classroom discussion after microaggressions, one reporting being deterred from speaking for fear of being rejected or shot down. Both outcomes are students who stop speaking, produced by opposite policies. Universities also face a financial constraint, because public institutions cannot impose additional security fees on student groups who invite controversial speakers without running afoul of the First Amendment, and past attempts have produced lawsuits costing upwards of $100,000. The paper argues that universities should adopt narrow, content-neutral policies that prohibit true threats, harassment, and incitement of illegal activity while protecting discussion and debate, and should address security costs through external donations and venue restriction. The supporting institutional evidence comes from a single survey at one residential house and does not settle the question.

Keywords. campus speech; First Amendment; chilling effect; content neutrality; higher education policy

1. INTRODUCTION

Freedom of speech is something that people have sought after for a long time, especially on university campuses. However, recent events display complications with it. The First Amendment protects the freedom of expression of the people, excluding threats, incitement to illegal activity, or harassment aimed at a specific characteristic of an individual or group (University of California, Berkeley, n.d.). Still, with the increase of controversial topics such as the Israeli-Palestinian war and immigration enforcement protests, the line between safe and unsafe speech is thin, leading to turmoil between students and universities.

As universities attempt to balance inclusivity among students, their safety, and their First Amendment rights, they face several drawbacks in terms of education (Welsh, 2024) and finance (Roman, 2021). Therefore, universities should adopt narrow, content-neutral policies that prohibit true threats, harassment, and the incitement of illegal activity, but also ensure freedom of discussion and debate.

2. THE EDUCATIONAL COST OF RESTRICTION

According to Jessica Flanigan and Alec Greven, writing in Public Affairs Quarterly, an academic journal that primarily focuses on public policy using philosophical reflection and assessment, the restriction of students' freedom of speech and expression by universities is a direct contradiction of university values. At higher institutions, students are required to think critically, and according to Olivia Welsh, an ethics and policy intern for the University of North Carolina at Chapel Hill's Policy Office, there is bound to be disagreement and argumentation. If freedom of speech restrictions are implemented, it may impede student learning.

To further elaborate on this issue, the United States Court of Appeals in Speech First, Inc. v. Cartwright, a case that discusses whether two speech policies at the University of Central Florida violate the First Amendment, found that if student speech is restricted, there is no way for students to debate topics of disagreement due to fear of conflict with school rules on speech. This is described as the chilling of speech, which the court analyzed as causing harm to an individual separately from enforcement (Speech First, Inc. v. Cartwright, 2022). Together, the idea of chilled speech and Flanigan and Greven's argument that speech restrictions may limit expression on college campuses suggest that even when policies do not punish students, they can still undermine the purpose of universities.

To further this, Flanigan and Greven (2021) mention that offensive, degrading, and hateful speech might inhibit learning and that restrictions on speech can also inhibit student learning, as part of their inclusive education argument. Here, they discuss that while speech restrictions are in theory supposed to promote inclusivity and diversity, they do not ensure the accessibility of intellectual

exchange among students. Because of this, Flanigan and Greven believe that rather than focusing on speech restrictions, university officials should instead use more factual-based teaching, which would result in a more balanced learning environment for students to think critically and still feel included. This perspective coincides with issues discussed in Speech First, Inc. v. Cartwright, as both discuss how fear of consequences inflicted by university officials discourages students from thinking critically and restricts intellectual debate.

3. THE FINANCIAL COST OF PERMISSION

On the other hand, while students face limitations on questioning opposing views and may feel excluded, universities can face serious repercussions if they try to comply with students' First Amendment rights. The composition of these is financial. According to Rebecca Roman, the executive editor of the University of Chicago Legal Forum, which conducts and publishes research on one important legal issue each year, universities have to pay large sums of money in order to host and protect controversial speakers invited by student parties.

To accompany this, the University of California, Berkeley, a university that has been discussing free speech since 1964, notes that it cannot impose fees on students based on their inviting a speaker who appears to be controversial. According to Roman (2021), public universities cannot impose additional security fees on student groups who invite controversial speakers without running afoul of the First Amendment. In the past, when universities tried to impose security fees on students, they were hit with lawsuits that cost upwards of $100,000 (Roman, 2021).

These financial issues complicate university standards and policies, making it more difficult to consider all parties. While universities are legally required to protect guest speakers, high security costs may force universities to divert funds from academic programs. Considered alongside the arguments for minimal speech restriction, these financial challenges display the pressure universities face from both students and legal constraints.

4. THE EDUCATIONAL COST OF PERMISSION

This introduces a significant issue, however. According to Leah Shafer, writing for the Harvard Graduate School of Education, which publishes research-based analysis on education and policy, if student speech is not limited, it can lead to students feeling offended by comments made by others, or even lead to them becoming uncommunicative and refusing to provide their perspective on a topic out of fear.

An example of this is provided by Ackerman-Barger et al. (2020) in Academic Medicine, a journal that covers institutional policies, values, and health and science policies in an academic setting. They conducted research on how students tend to withdraw from discussions due to microaggressions; one student mentioned that they felt deterred from speaking up in class and from offering personal opinions because, as they put it, they might get rejected or shot down.

This complicates the issue, as findings in Speech First, Inc. v. Cartwright show that policies that are too constraining may also restrict speech. It is worth naming what the two findings have in common: both describe students who stop speaking because of a consequence they anticipate. In one case the consequence comes from the institution, and in the other it comes from peers. However, if universities do end up limiting speech, and set up restrictions that give the students who were once feeling unsafe a safer space to make claims when prompted, they in turn may face lawsuits created by now-angered pro-free-speech students who believe the universities are infringing upon their First Amendment rights (Roman, 2021).

5. A POSSIBLE SOLUTION

A possible solution to this is that universities can try to appeal to both sides by setting policies so that students and professors may not make statements that incite illegal activity or make threats, but they can make controversial statements. This is something that some universities, such as the University of California, Berkeley, have already implemented. A report by Shaun R. Carver, the International House executive director, shows that 94 percent of students at International House feel safe sharing personal views on controversial topics (Carver, 2024). This is consistent with the effectiveness of such policies, though it comes from a single survey at one residential house, administered by its own director, and is a sign rather than a demonstration that implementing these rules might work for other campuses.

Now, as for addressing the financial issues that universities might face, there is not a clear solution. Because universities cannot impose security fees on students (Roman, 2021), there is no steady source of income that directly lessens the financial load caused by security. What can be done, however, is that universities can take donations from external sources and restrict the locations where guest speakers appear. Taking donations allows universities more flexibility with their finances, and restricting speaker locations to

more guardable areas such as auditoriums reduces the number of security personnel needed, in turn lessening universities' economic burden.

6. LIMITATIONS

No original data. This paper reviews published legal opinion, scholarship, and institutional reporting. It collects no data of its own.

Single-institution evidence. The 94 percent figure comes from one survey at one residential house, administered by its director, and cannot support a general claim about policy effectiveness.

Unmeasured comparison. Both restricting and permitting speech are shown here to deter students from speaking. No source reviewed measures both effects at the same institution, so their relative size is unknown.

Jurisdictional scope. Speech First, Inc. v. Cartwright binds the Eleventh Circuit, and First Amendment constraints apply differently to public and private universities, a distinction this paper does not develop.

7. CONCLUSION

In conclusion, while students face several issues behind speech restrictions such as impeded learning (Flanigan & Greven, 2021), fear of being independent-minded (Shafer, 2016), and the chilling of speech (Speech First, Inc. v. Cartwright, 2022), universities also face issues when trying to protect students by allowing free speech: paying the high costs of hosting and protecting controversial speakers that students may invite, and facing lawsuits if they try to make students pay a security fee to lessen the financial burden (Roman, 2021). Because of this, it is difficult for universities to draw a specific line on where they limit speech, and what is considered safe and unsafe speech.

In the end, what these higher institutions should do is make a policy that protects and allows verbal freedom among students on college campuses while prohibiting the conduct, rather than the opinions, that drives students out of discussion. A stronger follow-up study would compare classroom participation at matched institutions operating under broad and narrow speech policies, which would show which rule silences fewer students.

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CONTRIBUTIONS

Jingxuan Nie, sole author, developed the research question, gathered and reviewed the legal and scholarly sources, built the argument, and wrote the manuscript.